

Compliance Quick-Reference

From **The OneVision Playbook** by Isaiah Wright · onevision asset vault Fill this in. Do not retype it out of the book.

Chapter 17 · All stages

NOT LEGAL ADVICE. Written so you know what exists and what to ask about. Have a licensed attorney in your state review your actual practices.

Accurate as of August 2026. Two of these four areas changed within the last eighteen months and one has a further change scheduled for January 2027.

1 · MESSAGING — TCPA

- ☐ Consent checkbox **not pre-ticked**
- ☐ Consent language visible at the point of submission
- ☐ Record stored: what it said, when, from what IP
- ☐ Opt-outs honored **immediately and across all sending**, not per channel
- ☐ Every client-supplied list interrogated: how collected, when, what they agreed to
- ☐ Consent responsibility written into the agreement
- ☐ **Diary check: revocation-all rule takes effect Jan 31, 2027**

What moved: the FCC's one-to-one consent rule was vacated by the Eleventh Circuit in January 2025 (*Insurance Marketing Coalition v. FCC*); the text opt-out rule took effect April 2025; the FCC reinstated the prior express written consent standard in August 2025; the broader revocation-all requirement was delayed to January 31, 2027.

Registration ≠ consent. A2P 10DLC gets carriers to deliver. Consent gives you the right to send.

2 · RECORDING — M.G.L. C. 272 § 99 (MASSACHUSETTS)

- ☐ Announcement at the top of **every** recorded call
- ☐ Acknowledgment captured
- ☐ Applies to any call recorded in Massachusetts, wherever the other party sits

It's a secrecy statute, not strictly two-party consent. "Secretly" is the operative word in every offense — if everyone knows, there's no violation. Felony exposure: up to 5 years and \$10,000, plus civil damages.

If you'd rather not deal with it, don't record. Don't record quietly.

3 · PROMISES — M.G.L. C. 93A § 11 (MASSACHUSETTS)

- ☐ No income claims anywhere in writing
- ☐ Scope stated positively **and** negatively
- ☐ Searched every document for: **guarantee · will make · ROI · promise**

§ 9 is consumer claims. § 11 is business-to-business — your client is a business, so that's your exposure. Up to **treble damages plus attorney's fees** where a violation was willful or knowing, or relief refused in bad faith after a written demand.

Describe the service. Never predict their income.

4 · PROOF — FTC ENDORSEMENT GUIDES (REV. EFF. JULY 26, 2023)

- ☐ Written permission on file per client
- ☐ Material connections disclosed clearly and conspicuously
- ☐ Results labeled typical or exceptional, honestly
- ☐ **Client ad copy reviewed against the same standard**

"Clear and conspicuous" means difficult to miss and easily understood — unavoidable, standing out by color, size, placement, duration. Fine print doesn't meet it.

"Endorsement" is broad: reviews, tags, social mentions, seals, virtual influencers.

If you write a claim on a client's behalf that overstates what their customers typically get, you built their exposure.

ANNUAL

- ☐ Attorney review of MSA / SOW templates
- ☐ Re-check every date and rule on this page
- ☐ Last reviewed: _____

THE METRIC

Percentage of active sending with documented consent on file. Target 100%. You should be able to produce the consent record for any contact you've messaged, within five minutes, without asking anyone.